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Christian Moral Theology, on the Three Theological Virtues — selected sections

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Translated 1:1 from the diplomatic transcription. Marginal rubrics are Englished; bare citation formulae are left as printed. 86 sic-notes follow the text.

BLOCK A — Tractatus I, Quæstio I, Dubium VI

Whether, for a revelation to be the formal object of faith, it must be immediate, or whether a mediate one suffices; and consequently whether a proposition which is not revealed in itself but only follows from what is revealed is of faith.

PDF 32 (foot) – 36 = printed 12 (foot) – 16. Running heads verified: p. 12 *Tractatus Primus*; p. 13 *De fide Theologica & ejus objecto.*; p. 14 *Tractatus Primus*; p. 15 *De fide Teologica & ejus objecto.* [thus, without the *h*]; p. 16 *Tractatus Primus*.

{p. 12} [col. b]

[...] (the dubium begins mid-column; the preceding paragraph ends “...in the thing attested according to its intrinsic principles.”)

DUBIUM VI.

Whether, for a revelation to be the formal object of faith, it must be immediate, or whether a mediate one suffices; and consequently whether a proposition which is not revealed in itself but only follows from what is revealed is of faith.

It is to be noted that that revelation is called immediate by which something is manifested immediately and in itself, such as is the revelation of this: God is Father, Son, and Holy Ghost; *the Word was made flesh*, etc. But that revelation is called mediate by which something is manifested not in itself but in some other thing expressly and immediately revealed, such as is the revelation of this: Christ has a human will; which is manifested in this: Christ is man.

Now here it is disputed whether not only immediate but

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mediate revelation also is the formal object of faith; and consequently whether a proposition which is not revealed in itself, but only follows from things revealed, is of faith.

{marg. *Whether, for a thing to be of faith, it suffices that it be revealed only mediately.*} For the explanation of this it must be premised that a virtual or mediate revelation is always applied by discourse, that is, by the natural connexion of the immediate revelation with the mediate: which indeed can happen in two ways. And first thus, that not only the revelation itself, but at the same time the connexion of the consequent with the antecedent, should enter into the adequate formal object of believing; that is to say, so that a man believes some proposition partly on account of the revelation, partly on account of the evidence of the consequence by which it is deduced from principles of faith; that is, so that the evidence of the consequence is itself a partial formal object of the assent of faith. But in a second way thus, that the mediate revelation by itself alone is the total formal object of the assent of faith, with a previous discourse nevertheless as a condition explaining that the mediate revelation is contained in the immediate. These things being premised:

{marg. *The assent of faith does not rest upon discourse*} I say 1. No mediate revelation applied by discourse as by the formal reason of assenting is the formal object of faith. The reason is: because our faith [col. b] rests only upon the testimony of the first truth revealing, and therefore can in no way rest upon the evidence of the consequence; since otherwise it would not be more certain than is the knowledge of that consequence, for the reason that no assent can be more certain than its formal reason upon which it rests: and so in every argumentation

the assent of the conclusion is never more certain than the assent of the consequence: and therefore, although the antecedent were most certain, yet if the consequence be only probable, the assent of the conclusion also will be only probable. Besides, all assents of divine faith ought to be equally certain; which would not be true if some natural reason could be mingled with the divine testimony, on account of which, as a partial formal object, we should assent.

I say 2. Some mediate revelation applied by discourse only as a condition explaining that the mediate revelation is contained in the immediate can be the formal object of faith, and consequently some proposition which is not immediately revealed, but only deduced from things revealed, can be of faith; namely that which as a conclusion is evidently inferred from two premises of faith; and this for the reason that the signified of the conclusion is implicitly al-

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ways contained under the signified of one or of both of the premises, and thus is always at least implicitly revealed; as happens in this syllogism: everyone who has the power of absolving from Christ, truly had it; but Saint Peter had the power of absolving from Christ; therefore he truly had it.

I say 3. In this way too a particular proposition contained in a universal one expressly revealed is likewise of faith. The reason is, because in the universal proposition itself, immediately revealed in itself, there is also confusedly revealed every particular under it, so namely that it is the same thing to reveal some universal proposition as to reveal all the particulars contained under it: and therefore, when some particular is inferred from the universal, there is not properly inferred one proposition distinct from the other; because although these two differ in words, yet they do not differ formally or in their signified, since they signify the same thing, while from the signified taken generally there is inferred the signified taken particularly. And for that reason it is the same thing to reveal this universal, *it is appointed unto men once to die*, as to reveal that it is appointed that John, Peter, and Paul, and other individuals of man, should die once. So too this universal proposition, [col. b] all men have sinned in Adam, is immediately revealed, and in it all the individual propositions contained under it, at least confusedly; for the reason that their signified is revealed by God, although in other words: for he who testifies that every man has sinned in Adam also testifies that John, Peter, and Paul, and the remaining individuals of man, have sinned in Adam; and this not only by the mediation of some consequence, but immediately and according to itself,

though in other words: and on that account, even if a syllogism be formed and the evidence of the consequence be present, yet that evidence will not enter into the formal object of the assent of faith, but will only propose and apply to the intellect the very reason, or formal object, of the assent of faith.

You will say, the aforesaid rule fails in many examples; for although this universal is expressly and immediately revealed in itself, every man rightly baptized is in grace, likewise this, every man perfectly contrite is in grace, likewise this, every host truly consecrated contains the body of Christ, yet these particulars are not of faith: therefore John who is baptized is in grace, therefore Peter who is contrite is in grace, and in this host existing on the altar there is the body of Christ.

I answer that this is true, from which

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nevertheless it does not follow that the aforesaid rule is false: for just as he who testifies that every man is rational likewise testifies that John, Peter, and Paul are rational, so too he who testifies that every man rightly baptized is in grace testifies also that each one in particular rightly baptized is in grace: yet he does not by this testify that John, Peter, and Paul are in grace, because he does not testify that they were truly baptized. Whence, if in the aforesaid examples it were established by faith that John, Peter, and Paul were truly baptized or perfectly contrite, it would likewise be of faith that they are in grace; so too, if it were established from faith that this individual host was truly consecrated, it would likewise be of faith that the body of Christ is contained in it.

But when some conclusion is inferred from one premise of faith and another known only naturally, it cannot on that account be believed by faith.

The reason is that nothing can be of faith unless it be revealed by God; but a conclusion of that kind is not revealed by God; therefore it is not of faith. The premise subsumed is proved, because a conclusion of that kind is not inferred immediately from a revealed proposition, but only by the mediation of a proposition naturally known, which is not revealed by God. [col. b] Besides, the conclusion always follows the weaker part of the antecedent; which weaker part, since it is not of faith, as is supposed, neither can the conclusion itself be of faith.

You will say, the Church deduces many conclusions of this kind from the principles of faith, and proposes them to the faithful to be believed, which nevertheless are revealed neither in Scripture nor in tradition; therefore such are of faith. Besides, we do not otherwise know that they are revealed by God save by the mediation of this discourse: whatever is had in Scripture, in the traditions, and in the definitions of the Church is revealed by God; but these and those conclusions are such; therefore they are revealed by God.

I answer.

Although the Church defines many propositions to be of faith which by force of their signification are inferred from revealed propositions, and condemns the contraries as heretical, yet she does not so define propositions which are inferred precisely from one revealed proposition, and that only by reason of the connexion between the signified of both; as is plain in this: Christ is risible, which although it be inferred from this, Christ is true man, which is of faith, yet itself is not such; because it is not inferred from the other by force of its signification, since the former in no way signifies the latter. And hence the Church, when she defines like propo-

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sitions, only declares them to be certain, and the contraries erroneous; and therefore he who should deny propositions of this kind, though defined by the Church, would not on that account, as such, be a heretic; although nevertheless such a man would be so consequentially, inasmuch as by this he would implicitly assert that the Church can err in her definitions.

[End of Dubium VI; DUBIUM VII (= VII) follows immediately.]

BLOCK B — Tractatus I, Quæstio I, Dubium IX

Whether falsehood can lie beneath faith.

PDF 41–46 = printed 21–26. *(The commission specified PDF 41–44 = printed 21–24; but the dubium in fact runs on to the foot of col. a and the head of col. b of printed p. 26, where it ends immediately before DUBIUM. X. Pages 25–26 were therefore rendered from the source PDF at the same 400 dpi and are transcribed here so that the block runs “heading to the end, immediately before DUBIUM X.”*

as instructed. See sic-note B-1.) Running heads verified: p. 21 *De fide Theologica & ejus objecto.*; p. 22 *Tractatus Primus*; p. 23 *De fide Theologica & ejus objecto.*; p. 24 *Tractatus Primus*; p. 25 *De fide Theologica & ejus objecto.*; p. 26 *Tractatus Primus*.

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[...] (the preceding dubium ends: “whence in this the faithful *differ* from heretics, that these latter reduce their faith to the invisible testimony of the Holy Ghost, but the faithful to the testimony of the Church proposing this or that as of faith.”)

DUBIUM IX.

Whether falsehood can lie beneath faith.

I answer: no. Because whatever is of faith is confirmed by divine authority; but it implies a contradiction that a thing should be confirmed by divine authority and be false.

1. If faith in us could be the principle of a false assent, God would be the cause of that falsity. The reason is, because God is no less the cause of faith than of the natural light; but if the natural light were the principle of some false assent, God as the author of nature would deceive us; therefore proportionally he would deceive us as the author of grace, if infused faith could lead us to a false assent.

It is proved 3. because a habit is not borne toward any object save inasmuch as that object stands under and is informed by the formal reason of the habit itself, in the manner in which colour cannot be seen except by light. But since the formal reason of the object of faith is the first truth revealing, nothing can fall under faith save inasmuch as it stands under the first truth, beneath which no falsehood can stand, any more than [col. b] evil under good, or non-being under being.

It is proved 4. because whatever is of faith is revealed by the first truth, and therefore is most certain and most true, from which accordingly all falsity must be absent; for otherwise the first truth would either deceive or be deceived, which implies a contradiction; for by that very fact it would not be the first truth.

{marg. *Why falsehood can lie beneath prudence rather than beneath faith.*} You will say, falsehood can lie beneath infused prudence; therefore beneath infused faith also. The antecedent is proved, because infused prudence dictates that the host elevated by the priest at Mass is to be adored, which nevertheless it sometimes happens, either by the negligence or by the malice of the priest, has not been consecrated, and consequently is not worthy of adoration; in which case that prudence will incline to a falsehood. Similarly it will be able practically to judge that it is lawful for a man to be joined with this woman, who nevertheless on the side of the thing is not his wife.

I answer, denying the consequence; and the reason of the difference is that prudence is a practical intellectual virtue, not a speculative one; to which accordingly it does not belong to judge what some thing is on the side of the thing, but what it appears to be according to right reason after diligent examination has been made: and on that account it is no wonder that it can sometimes be occupied about an object speculatively false, or, what is the same, that it be deceived speculatively

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about its object, although it can never be deceived practically. Whence, although that speculative judgment by which I judge this host to be consecrated, or this woman to be my wife, can be speculatively false, yet the practical judgment by which I prudently judge that I may adore this host, or by which I judge that I may approach this woman, can never be practically false, but is always true. And so prudence perfects the intellect only in the order to particulars conformably to right reason; and therefore its dictate always inclines to what is practically true, even if it be occupied about something which is speculatively false.

Further, faith is an intellectual virtue at once practical and speculative, perfecting the intellect not only as to practice but also as to speculation; and therefore it must exclude every falsehood, both speculative and practical. Accordingly it is no wonder that falsehood cannot lie beneath it even speculatively, as it can beneath prudence.

You will say, bishops can come together in some synod to define an erroneous proposition, as happened in the time of St Cyprian, when the bishops of Africa defined baptism conferred by heretics to be null; but in such a case the habit of faith will move the people to assent to this doctrine proposed by the synod; therefore faith too can incline to what is speculatively false.

I answer, denying the premise subsumed. For prudence will then be able to dictate to the people that the proposition defined by the synod is to be believed; to which nevertheless faith cannot incline, because, as is supposed, what is proposed is false; and although the people think they believe by supernatural faith, they are nevertheless deceived, because they believe only by human faith.

You will say, when a syllogism is made whose first premise is of faith and the other false, which nevertheless is believed true by human faith (as in this syllogism: no council assembled and legitimately confirmed by the authority of the Pontiff can err in defining matters of faith; but the Council of Basel is such; therefore it cannot err in defining matters of faith), then it can happen that the conclusion is false; but the assent to the false conclusion issues as an effect from the assent to the premises, because the assent to each premise is the cause of the assent to the conclusion: and consequently the assent to the major premise, which is of faith, will concur to the false assent of the conclusion. Which is confirmed, because a false opinion can incline to a true as-

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sent; therefore conversely a true opinion can incline to a false assent.

I answer that, although the conclusion as regards the sequence is to be referred to both premises, yet as concerns the falsity itself of the conclusion, this is to be referred to the minor alone: since the major and the minor together are the cause why something follows; but that what follows is false, this comes from the minor. Whence, to the confirmation, I deny the consequence, because the case is not the same; for it is not unfitting that in a good argumentation there be a false antecedent with a true consequent, although it is impossible that in a good argumentation there be a true antecedent with a false consequent.

You will say, the infused faith of the ancient Fathers inclined to the assent of this: Christ is to be born; but once Christ was born that assent was false; therefore faith can incline to a false assent.

I answer that the faith of the ancient Fathers inclined them to believe the future nativity of Christ for the time in which it was still future; but when it could deservedly be doubted whether the time of the Messiah's birth had come, then faith did not incline them to believe the nativity of Christ as future.

You will say, the habit of faith can incline to an assent which is a sin, for example to believing for the sake of vain- [col. b] glory, which is practically false; therefore also to what is speculatively false.

I answer, denying the antecedent; because, since the Holy Ghost by a special supernatural help moves the will to believe, he would have to be said to cause an evil act, and consequently to sin primarily in this act, which is impossible.

{*marg. Why other virtues can rather elicit an act about an object materially false.*}

You will say, the virtue of justice, of religion, of chastity, and the like can in very fact be occupied about some object which on the side of the thing is unjust, irreligious, lustful, etc.; therefore faith too can be occupied about an object materially false.

I answer, denying the consequence; and the reason of the difference is that an object materially evil can be formally good and honest, inasmuch namely as, upon previous sufficient diligence, it is prudently judged to be such; for then it puts on the character of the honest, toward which the virtue then of itself tends; since that dictate of prudence applied to this object is as it were the ultimate reason and form of honesty. But an object materially false cannot be formally true, for the reason that truth and falsity are taken from agreement or disagreement with the thing itself; whereas malice is taken from the object not as it is on the side of the thing, but as it is prudently represented by the intellect to the will: and

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thus one who adores a host that is not consecrated, but which in good faith he thinks to be consecrated, formally elicits an act of religion, as also one who gives alms to some poor man thought to be such elicits an act of mercy.

You will say, the motives by which the unlearned and simple faithful, likewise children when they have come to the use of reason, or even sometimes infidels, are led to judge the things of faith credible as divinely revealed, do not seem always so solid but that like motives could be accommodated to a false proposition; as is plain when something is proposed to those unlearned persons by their pastors as

divinely revealed and confirmed by miracles: for then from such a proposal they are wont to judge that it is so to be believed; and yet it can happen that parents or pastors propose to them some things as of faith which nevertheless on the side of the thing are not of faith. So too infidels are read to have been sometimes converted by the sight of the constancy of the holy martyrs in torments; and yet many heretics, deceiving souls, have endured such torments too with a like constancy. Therefore it must be admitted that falsehood can lie beneath a proposition of faith; because otherwise those simpler folk would not prudently judge the mysteries of faith to be credible, nor would their believing be an act [col. b] of infused faith, which would be everywhere to condemn all the ruder and unlearned sort, as though they never elicited an act of true faith. But if it be admitted that falsehood can lie beneath a proposal of things to be believed of that kind, then consequently there will seem to be admitted a habit of faith which inclines toward a false object, for the reason that a virtue inclines toward the object which is prudently judged to be its object.

I answer, and I say first that a proposition which is proposed by the universal Church as to be believed of faith must be so held, so that it is impossible that what is confirmed by so many signs and arguments should be false or erroneous: for most truly does Richard of St Victor write, *lib. 1. de Trinit. cap. 2.*, when he says thus: „ truly „ the things which have been revealed to us from heaven „ are confirmed by prodigies so great and so wonderful „ that it seems to be a kind „ of madness to doubt of them even „ a little: „ and a little after he says again: „ shall we not with „ all confidence be able to say, Lord, if it is an error, by thee „ have we been deceived: for these things have been „ confirmed to us by such great signs and prodigies „ as could not have been wrought but by thee.

{marg. *That men are led to believe not only by motives*} Further, for the answer in form to this sufficiently difficult objection, it is to be observed that the proposal by which the truths of faith are pro-

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{marg. (rubric continued from p. 24) *external, but also by internal ones, and what these are.*} posed as credible, being revealed by God, consists of motives partly external, which namely are drawn from natural reason or from deeds exceeding nature, and partly of internal motives, such as is the habitual light of faith, or a certain internal actual illumination of the mind, as St Thomas teaches, *2. 2. quæst. 2. art. 9. ad tertium*, where he speaks thus: „ he who „ believes has a sufficient

induce-,, ment to believing; for he is led ,, by the authority of divine doctri-,, ne confirmed by miracles; and, ,, what is more, by the interior instinct ,, of God inviting him.

{marg. *Why faith in the unlearned does not incline them to believe falsehoods equally with truths, when they are outwardly proposed in the same way*} I say 2. Although, attending only to the external motives by which it happens that many are led to believe the mysteries of faith as revealed by God, it can be said that those motives, regarded in themselves and nakedly, do not seem so firm but that like ones could concur and be employed to persuade some falsehood as credible, yet we deny that, absolutely speaking and all the motives being considered, both internal and external, which concur to the proposal of faith and to the forming of a judgment about its credibility, it can happen that falsehood can lie beneath them. Which is explained thus: because along with those external motives, proposals, and arguments of the credibility of faith — for example those which are drawn from the exterior act of martyrdom [col. b] which some martyr undergoes for the faith, or by the attestation of some miracle which one announcing the Gospel works, or by the instruction of parents or pastors proposing some things as of faith — it happens that there concurs at the same time in the believing man some intrinsic motive as it were illuminating a proposal, argument, or instruction of this kind, by which something credible is proposed, through which taken together he knows these things as credible by divine faith; which motive another man does not have who hears and sees the same proposal, argument, or instruction by the outward sign alone. Thus St Jerome, on chapter 9 of Matthew, refuting Julian the Emperor, who asserted that those men were fools who at once followed the Saviour, answers that ,, the very splendour and majesty ,, of the hidden divinity, which even in ,, the human appearance of the Saviour shone ,, forth, could draw those who saw him by ,, the mere sight ,, : so namely that they prudently judged him to be the Messiah: not indeed that the external sight alone was sufficient for this, but that sight together with the internal divine influence of *the Holy Ghost*. And so two men can see the same martyrdom, in such wise that one, by means of an internal illumination, clearly knows that the martyr undergoes those torments from the motive of true piety, which

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the other, destitute of that internal light, does not know in him: and on that account the one, by that external sight of the martyrdom as an external motive, joined with the internal light, prudently judges that the Christian faith is to be embraced; but the other, destitute of this light, resting on the external motive alone, will not be so prudently moved.

From which it is plain that simpler Christians are not everywhere to be condemned as men who do not exercise true acts of faith; nor are those infidels to be at once accused of imprudence, because they are sometimes read to have been publicly converted upon certain external occasions seen or heard, which, regarded in themselves and nakedly, could not sufficiently make the mysteries of faith credible: because, namely, the former, imbued with the habit of faith, are fittingly disposed for apprehending those things which serve faith, and are thus helped to advert more perfectly to the credibility of the things proposed; since, as St Thomas says here, *art. 4. ad tertium*, the light of faith makes a man see the things which are believed under the common notion of the credible; which in infidels is done by actual internal illuminations.

Yet lest by these things occasion of sloth be given to pastors, whose duty it is to instruct the rude in the fundamentals so that they may believe prudently, or even to the unlearned themselves, who are obliged carefully to learn them, I say that, although common Christians are not everywhere to be reckoned as lacking true faith in the exercise of acts of faith, yet it is to be feared that in many places, through the defect of right instruction and of sufficient information in the motives and foundations of credibility, they are not so disposed as to judge prudently concerning the truths of faith to be embraced, and on that account do not exercise true acts of faith, and at length fall away from the faith altogether.

[End of Dubium IX; DUBIUM. X. follows immediately.]

BLOCK D — Tractatus I, Quæstio II, Dubium V

Whether the Roman Pontiff has the authority of defining matters of faith and of terminating controversies by himself alone, or only with a general Council, or with an assembly of counsellors whom he takes to himself.

PDF 79–83 = printed 59–63. Running heads verified: p. 59 *De Ecclesiâ*.; p. 60 *Tractatus Primus*; p. 61 *De Ecclesiâ*.; p. 62 *Tractatus Primus*; p. 63 *De Ecclesiâ*. (The Quæstio-II pages carry *De Ecclesiâ*. on rectos, not the *De fide Theologica* head of Quæstio I.)

{p. 59} [col. b]

[...] (col. a of p. 59 carries the close of the preceding dubium, on the primacy of the Roman See, and ends “...and consequently that another bishop than the Roman be chosen in the primacy.” — with the marginal rubric {marg. *The primacy was given to the Roman See by God.*})

DUBIUM V.

Whether the Roman Pontiff has the authority of defining matters of faith and of terminating controversies by himself alone, or only with a general Council, or with an assembly of counsellors whom he takes to himself.

It is to be noted beforehand that here, and in what has gone before, we are treating of the Pontiff not as he is a private person — for as such it implies no contradiction that he teach errors, as private doctors can teach them — but that we are treating of him inasmuch as he is the universal Pastor of the Church teaching *ex Cathedra*.

{marg. *The Pontiff can be considered as a private Doctor, and as head of the Church.*} Further, although it is certain among Catholics against heretics that the Supreme Pontiff, as universal Pastor of the Church speaking *ex Cathedra*, cannot err in defining matters of faith, yet there is a grave dispute among Catholics themselves in explaining what it is for the Pontiff to speak *ex Cathedra*, and whether the Pontiff has the authority of defining matters of faith by himself alone, or only when he presides over a general Council, or whether as often as, outside a general Council, he proposes something as of faith to be believed as universal Pastor and obliges all the faithful so to believe.

{marg. *The opinion of cer-*} The first opinion is that of certain

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{marg. (rubric continued from p. 59) ...*tain men asserting that the Roman Pontiff, defining without a Council, can err.*} Doctors of the Sorbonne, among whom Armachanus, Ockham, the Cardinal of Cambrai, Almain, Gerson, etc.; likewise of Adrian VI, Supreme Pontiff, *quæst. de confirmatione*, of Alphonsus de Castro, *lib. 5. adversus hæreses cap. 2.*, who say that the Pontiff, even as universal Pastor of the Church, defining something in a matter of faith without a general Council, can err; but otherwise if he does it with a general Council.

Further, this opinion rests upon these reasons: first, because otherwise general Councils would be assembled in vain, which nevertheless have always been judged necessary in the Church of God for establishing the dogmas of faith and condemning heresies.

1. Because the infallible assistance of the Holy Ghost is given to the Pontiff only while he proceeds in a human manner, namely by consulting doctors and other prudent and holy men upon the truth to be defined: but that discussion of the truth must take place in a general Council, to which the chief Doctors of the Church come together.

{marg. *The knowledge of others asserting that the Pontiff, defining by himself alone,*} The second opinion asserts that the Pontiff, even outside a general Council, defining something in a matter of faith as universal Pastor of the Church, however much by himself alone, cannot err. Further, [col. b] this opinion rests upon these reasons. {marg. (inner margin, head of page — evidently the tail of the rubric begun at the foot of the outer margin of this same page) *cannot err in matters of faith.*} First, because the Supreme Pontiff, since he is the successor of St Peter, has the same authority in defining matters of faith which St Peter had; but he had it independently of a general Council; therefore the Roman Pontiff too has it, as Peter's successor, independently of a general Council; for the reason that that authority was not given to Peter as to a private person, but as to the public Pastor of the universal Church for the good and profit of the Church, and therefore as to be continued in his successors. And on that account Christ said to him, Luke 22, *I have prayed for thee, that thy faith fail not: and thou, being once converted, confirm thy brethren.* And John 21, *Feed my sheep:* for since the sheep of Christ were to be until the consummation of the world, he himself also had to substitute

for his fold, by a continued succession, temporal pastors; and consequently that which Christ conferred upon the first Pastor in the institution of this pastorate, he is understood to have conferred upon each of his successors.

Secondly, ecclesiastical custom manifestly declares this, because an appeal in causes of faith from the Roman See to a general Council has never been admitted, but whoever have been condemned by it as heretics have also been judged such by the universal Church; and certainly if the

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judgment of the Roman See were fallible, but that of a Council truthful, it would never be lawful to deny an appeal from the Pontiff to a general Council; yet appeals of that kind, especially in ecclesiastical dogmas, the Church knows not.

3 If for condemning individual heretics and refuting heresies a general Council were needed, since that would frequently be not only very difficult but very often impossible, it would be lawful for heretics meanwhile to live with impunity until a general Council should be assembled.

Besides, if among the fathers of a general Council some controversy should arise upon the sense of some Scripture, or some other controversy of faith, no other judge can be taken to settle this dispute than the Roman Bishop.

{marg. *The third opinion, of those asserting that the Pontiff, in order to be infallible, must employ the counsel of prudent men.*} The third opinion asserts that the Pontiff, even as universal Pastor of the Church defining something concerning faith, can err if he does it by himself alone; and therefore that it is necessary, before he defines anything in a matter of faith, that he take to himself a congregation of learned and pious men who may first accurately examine the matter and discuss the arguments of either Father; and this because Christ promised his assistance to the Pontiff while he proceeds seriously and prudently in a human manner. And thus to the Apostles gathered in the synod of Jerusalem, *Acto. 15.*, it was not at once revealed what was to be decreed in the cause of faith, but there was first made, as Luke says, a great disputation, then Peter said to them, etc. And when the Pontiff has employed this diligence, then there is given to him that assistance by which he cannot err in faith, and **without which the Holy Ghost will not assist him defining**. Which nevertheless is not so to be understood as though this

infallibility resided in the assembly of learned men whom he takes to himself, but because that assembly is preredquired as a **condition without which the Holy Ghost will not infallibly assist him defining.**

{marg. *This opinion is proved.*} And this third opinion seems the truer, which we embrace with Cano, *lib. 5. cap 5.*, where he puts a difference between the authors of the canonical books and the Supreme Pontiff, and likewise a general Council: namely, that the authors of the canonical books wrote Catholic dogmas from the immediate revelation of God, but the Pontiff and a general Council proceed by a human way and follow reason, and by arguing and discussing discern the true from the false. For the Supreme Pontiff is not, says Cano, to be thought to have that faculty which was in the Prophets, Apostles, and Evangelists, that upon any question of faith being proposed he could forthwith discern

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which part of the question is true or false; but it is necessary first to employ a council, and he must weigh the arguments of either part: then thereafter follows the help of God which the Pontiff needs, that he may be kept in the right faith: so Cano in the place cited.

{marg. *The Pontiff can infallibly define matters of faith outside a general Council.*} From which it is plain that the Pontiff's power of defining matters of faith depends upon an assembly and council of learned men as upon a condition without which not, yet not upon a general Council, as the first opinion would have it; for if this depended upon a general Council in such a way that without it the Pontiff could not validly define, certainly very many dogmas of faith would now be called into doubt, for the reason that many of them were defined not in general Councils, but either in provincial or in national Councils confirmed by the Pontiff: for thus we have seen above that the heresy of the Novatians, denying penance to those who lapsed after Baptism, was condemned by Pope Cornelius in the year 255 in a Roman Council; as also that in the same century there was decided by Pope Stephen the controversy long agitated in Africa in the time of St Cyprian, whether those who had been baptized by heretics were to be rebaptized; and that all were held heretics who pertinaciously held the contrary. Besides, very many heresies have been con- [col. b] demned by divers Pontiffs upon the sole previous congregation of learned men, as Leo X did even in the preceding century, who thus condemned the heresies of Luther.

And certainly it is not likely that Christ restricted this authority of defining controversies of faith in his Vicar to a general Council, for the reason that it is often morally impossible to convoke one in great persecutions, as happened in the first three hundred years, in which, after the Council of the Apostles celebrated at Jerusalem, no other was assembled; since the first was that of Nicaea, celebrated in the year 327 after the birth of Christ. But on the other hand there is often a most grave necessity urging, either of condemning a heresy that has arisen lest it creep further, or of declaring a doubtful truth which is nevertheless necessary to salvation.

Besides, if the Pontiff had not the infallible authority of defining matters of faith save in a general Council, he would be bound in defining them to follow the greater part of the votes; for on this supposition a general Council would be required for this reason, that the Pontiff should not proceed rashly without first consulting the Church assembled in a general Council; and if he did not do this he would proceed rashly, who, leaving the greater part of the votes, should follow the lesser.

{p. 63} [col. a]

From these and other things it is plain that the Pontiff, even without a general Council, can exercise this infallible authority of defining matters of faith upon a previous congregation of upright (†word obliterated in manuscript ink) men for duly and legitimately discussing the truth according to the gravity of the matters. When, however, a general Council can be convoked, it is plainly expedient to assemble it, both for the fuller discussion and examination of the truth, and for causing a greater evidence of credibility in the very matters to be defined.

For indeed, before the Pontiff defines some thing as to be believed by divine faith, he must have the evidence of credibility that that thing is revealed by God; nor in defining it does he make a new revelation, but declares one already made, and proposes what has been declared to the faithful to be believed by divine faith; for he does not himself build up or forge a new faith, but only declares the ancient. For neither the Pontiff nor the Church has the power of making anything to be of faith which was not of faith before, because she has no new revelations. And that is the special privilege of canonical Scripture, that it is as it were *the pen of a scrivener*

that writeth swiftly, the Holy Ghost dictating it immediately, and not working by that copious discourse by which the Pontiff and the Church [col. b] proceed to their definitions.

You will ask, to what do pontifical definitions serve, since for believing there suffices a divine revelation sufficiently proposed through the motives of credibility.

I answer that this is true in respect of the things to be believed which are explicitly and expressly proposed, but not in respect of those which are proposed to be believed only confusedly, implicitly, and mediately, so that there can be a doubt about the true sense of the revelation, for which a pontifical definition is necessary.

You will ask, whether then pontifical definitions in a matter of faith are not of faith.

{*marg. Whether and how far the decisions of the Pontiffs are of faith.*} I answer: yes; although nevertheless they do not have the same degree of authority with Sacred Scripture and the Apostolic traditions, for the reason that these rest immediately upon divine revelation, but pontifical definitions only mediately, inasmuch namely as they are drawn by a certain and evident consequence from things revealed, that is, from Scripture or tradition. But for this it is necessary that the conclusion to be defined by the Pontiff have on the side of the thing an identity with the things previously revealed, so namely that it have the character of one concept with them; for otherwise the ancient revelation could not reach it, and therefore neither could it be infallibly declared to be of faith.

[Block E follows immediately: the catchword at the foot of this column is Petes*.]*

BLOCK E — Tractatus I, Quæstio II, Dubium V continued: the decrees of morals

From You will ask, whether, just as the Roman Pontiff teaching *ex Cathedra* is infallible... to the Leo X / *montes pietatis* paragraph

PDF 83 (foot) – 85 (head) = printed 63 (foot) – 65 (head). In fact the passage opens with the catchword *Petes* at the foot of printed p. 63 and its first words stand at the head of col. a of printed p. 64; it ends at the foot of col. a of printed p. 65, immediately before DUBIUM VIJ. Running heads verified: p. 63 *De Ecclesiâ*.; p. 64 *Tractatus Primus*; p. 65 *De Ecclesiâ*.

{p. 63} [col. b]

[...] (catchword at the foot of the column: *Petes*)

{p. 64} [col. a]

{marg. *Some decrees of morals depend on some fact, others not.*} You will ask, whether, just as the Roman Pontiff teaching *ex Cathedra* is infallible in deciding doubtful questions of faith, so too he is infallible in the **decrees of morals**? Before I answer, it must be noted beforehand that a twofold decree of morals is to be distinguished: one, namely, depending upon a fact and upon things done; the other depending upon a right pertaining to the universal Church. Examples of the former are, for instance, that Peter is worthy of such a benefice to which he is recommended; that John is justly deprived of his canonry; that Paul justly possesses his canonry. Examples of the latter are these, for instance: that little ones are to be baptized; that the laity satisfy by communicating under one species only; that usury or simony is not to be committed; that the cult of the saints is lawful, as also of relics, etc.

{marg. *The Pontiff is fallible in deciding those things which depend on some fact.*} As to a decree of the first kind, namely one depending upon a fact, all agree that the Pontiff can err in it, for the reason that in respect of it he has not the infallible assistance of the Holy Ghost, since in respect of it he proceeds as a mere ecclesiastical prince resting upon human testimonies: which Innocent III not obscurely declares in *c. à nobis sæpe est quæsitum de sent: excommunicat.*, where he says [col. b] that the judgment of God always rests upon truth, and neither deceives nor is deceived; but the judgment of the Church sometimes follows

opinion, which it often happens both to deceive and to be deceived; on account of which it sometimes happens that he who is bound before God is loosed before the Church, and he who is free before God is bound by an ecclesiastical censure.

{marg. *He is nevertheless infallible in proposing the doctrine of morals necessary for the Church.*} As to decrees of the second kind, the Pontiff cannot err in delivering and teaching *ex cathedra* to the whole Church a doctrine of morals necessary to salvation, at least attending to the substance of the law and precept — which I add, because nothing hinders his labouring under some defect of prudence as to certain circumstances, for example by doing something at an inconvenient time, or by approving too many religious orders, etc. For if in enacting laws of this kind he could err as to the substance, the whole Church too could err in the business of salvation; but that this should happen is impossible, since according to the saying of the Saviour *the gates of hell shall not prevail against it*. The premise assumed is proved, because the whole Church is obliged by the precept of Christ to obey the Supreme Pontiff when he forbids or commands something necessary to salvation: and so, **if the Pontiff were to err in this, the whole Church would likewise so err.**

Besides, since decrees of mo-

{p. 65} [col. a]

{marg. *Decrees of morals belong practically to faith*} rals of this kind are decrees of faith in practical matter, if the Pontiff could err in such, it would follow that he could err in defining two questions of faith; for the same Scripture teaches that sin is base and therefore to be avoided, but that virtue is honest and therefore to be embraced. If therefore the Pontiff, erring, were to command a vice or to forbid a virtue, certainly he would teach against Scripture, and so would commit an error in faith. Moreover, since the Pontiff is the supreme Pastor of the Church, he must have an infallible power for pasturing the sheep of Christ healthfully; for otherwise Christ would not have provided well for his Church: and certainly his power would be very slight if it did not extend to decrees of morals of this kind.

You will ask, whether the Pontiff could err in defining some contract to be just or unjust.

I answer: no, as can be proved from what has already been said; it can also be proved from the decree of Leo X, who defined, with the approbation of the sacred Lateran Council, that the contract which the *montes pietatis* make is just and

lawful, and that it had been laudably approved by his predecessors Paul II, Sixtus IV, Innocent VIII, Alexander VI, and Julius II, as is established from his bull issued thereupon.

[End of the discussion of the decrees of morals; DUBIUM VIJ. follows immediately in col. b of the same page.]

BLOCK F — Tractatus I, Quæstio II, Dubium VII

Whether the Pontiff can err in the Canonization, and likewise in the Beatification, of Saints.

PDF 85–86 = printed 65–66. *(The commission gave PDF 85–87 = printed 65–67; but the dubium ends at the foot of col. b of printed p. 66, with the catchword Dub. 8. DUBIUM VIII begins at the head of col. a of printed p. 67 — see sic-note F-1.)*
Running heads verified: p. 65 *De Ecclesiâ*.; p. 66 *Tractatus Primus*.

{p. 65} [col. b]

DUBIUM VIJ.

Whether the Pontiff can err in the Canonization, and likewise in the Beatification, of Saints.

{marg. *What the Canonization of Saints is.*} I premise that the canonization of saints is nothing else than a public testimony of the Church concerning the true sanctity and glory of some man already deceased. {marg. *What Beatification is.*} But beatification is nothing else than a concession made by the Pontiff to some religious order or province, by which one deceased may be called Blessed and the cult of dulia be exhibited to him. Canonization therefore differs from beatification in that canonization is done by way of a last and definitive sentence pronounced by the Pontiff concerning the sanctity and glory of the one canonized, proposed to the whole Church; but beatification is not so, but is something preambulatory to canonization.

Further, the first who was canonized by the Church with solemn rite, on the testimony of Cardinal Bellarmine, *lib. de Sanctorum Beatitudine cap. 8.*, was St Suitbert, canonized by Leo III at the instance and prayers of Charlemagne the Emperor, as Baronius testifies at the year 804.

{marg. *The Pontiff cannot err in the Canoni-*} These things being premised, I say first that the Pontiff can err neither in the canonization nor in the beatification of saints. The reason

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{marg. (rubric continued from p. 65) *zation of Saints.*} is that he cannot err in decrees of morals, as we said above, obliging the universal Church, of which sort this decree is: for if the Pontiff could err in enacting such a decree, the whole Church could err, which is against the promise of Christ made to the Church, John 16: *when he, the Spirit of truth, is come, he will teach you all truth*: which is further proved, for by the decree of canonization the Pontiff proposes such a saint to be celebrated and venerated by all the faithful, whom he obliges to acknowledge him as in fact reigning with Christ in heaven; who accordingly are obliged to obey the Pontiff in this part. From which it manifestly follows that, if the Pontiff should err in proposing to the faithful as a saint one who nevertheless is not such, the whole Church too will err in venerating as a saint one who is not such.

{marg. *It is not of faith that one merely Beatified is in heaven.*} You will ask, whether it is of faith that someone beatified is in heaven.

I answer: no. For if this were certain, the Pontiff would not proceed further, employing greater diligence and a greater examination upon the sanctity of the one to be canonized; for what is certain of faith needs no further certitude. But the Pontiff, proceeding to canonization, is not content with the prior examination made in the beatification, but more- [col. b] over institutes a new one, and that not only for form's sake and for external pomp, but for the having of a greater certitude concerning the sanctity of the one to be canonized. And hence St Thomas, *quodlib. 9. art. ulti.*, rightly says that it is piously to be believed that in the canonization of saints the judgment of the Church cannot err.

You will say, the Pontiff in the canonization of saints uses human testimony, which is fallible, and consequently he is not infallible in an act of that kind.

I answer, admitting the antecedent, denying the consequent: because he does not use human testimony as a motive of believing, but only as a certain means through which he inquires; and the inquiry being made, the true sanctity of the dead man is established for him. But when that inquiry has been made and certain signs of the sanctity of the one to be canonized have been had, **since the Pontiff's attestation is a public testimony for the whole Church, the providence of God is bound to assist him, lest, if it were false, the whole Church should err.** And so likewise in defining that this or that is canonical Scripture, or an apostolic tradition, the Pontiff uses human testimony as an explaining condition; from which nevertheless it by no means follows that he can be deceived in declaring some Scripture or apostolic tradition.

[End of Dubium VII; the catchword at the foot of the column is Dub. 8.*, and DUBIUM VIII opens the next page.]*

BLOCK G — Tractatus I, Quæstio II, Dubium VIII — *the central passage*

Whether it is of faith that Innocent XI, the happily reigning Roman Pontiff, is the true successor of Peter and the Vicar of Christ on earth?

PDF 87–89 = printed 67–69. Running heads verified: p. 67 *De Ecclesiâ.*; p. 68 *Tractatus Primus*; p. 69 *De Ecclesiâ*. The dubium ends part-way down col. a of printed p. 69, immediately before DUBIUM IX.

{p. 67} [col. a]

DUBIUM VIII

Whether it is of faith that Innocent XI, the happily reigning Roman Pontiff, is the true successor of Peter and the Vicar of Christ on earth?

{marg. *That the modern Pontiff is the true Pontiff is not of divine faith.*} **I answer: no.** But that this is certain only by **human prudence, beneath which falsehood can speculatively lie**, as Cajetan rightly says, 2. 2. *quæst. 1. art. 10*. The reason is: because the canonical election of the Roman Pontiff depends upon several conditions, which we are neither bound to believe by divine faith, nor can we, humanly speaking, know them all; on that account, in this syllogism: every Pontiff

legitimately elected is the successor of St Peter and the Vicar of Christ; but Innocent XI is a Pontiff legitimately elected; therefore Innocent XI is the successor of Peter and the Vicar of Christ — the antecedent is not certain to us by faith, at least as to the minor; therefore neither is the consequent. The consequence is proved: for since by divine right it is required that the Pontiff be **a man**; secondly **baptized**; thirdly **legitimately ordained**; fourthly **legitimately elected by legitimate electors** — all these things we cannot, humanly speaking, evidently know, much less believe; while nevertheless upon them depends the legitimate election of the Pontiff. [col. b] Hence, in precisely the manner in which it is not of faith that this Sacred Host in the individual, exposed in the monstrance, contains the true Body of Christ — for the reason that whether it has been rightly consecrated depends upon many circumstances which, humanly speaking, cannot be most certainly known — so neither is it of faith that this individual Pontiff Innocent XI is the true successor of Peter and the Vicar of Christ on earth.

It is proved 3. because neither from Scripture nor from tradition can it be established for us that this singular person is the true successor of Peter.

It is proved 4. because **one who should deny that this individual Roman Pontiff is Peter's successor would not be a heretic**, provided he did not deny that a Roman Pontiff legitimately elected is Peter's successor: therefore that this modern Pontiff is the true successor of Peter is not of faith.

You will say, if it is not certain by divine faith that this Pontiff is the true Pontiff, then neither will it be established by divine faith that this Scripture is canonical Scripture, nor that this tradition is a true one. For that this Scripture is canonical and that this tradition is apostolic depends upon the definition and declaration of the Supreme Pontiff?

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I answer, denying the consequent; since **it is quite consistent that a thing proposed be certain by faith, even though the proposer himself be certain not by divine faith but only by human faith**: for thus we believe by divine faith that the mysteries of the Christian religion are true and revealed by God, even though the signs and motives by which they are proposed to us as evidently credible are not certain by divine faith as revealed by God, and consequently we do not believe them by divine faith but by human faith alone. Therefore in like manner we can believe by divine faith the things which this Pontiff proposes to us as to be

believed by divine faith, even if we do not believe by divine faith that he is the true Pontiff, but only by human faith. For neither is it true, as is plain from what has been said, that for a thing to be believed by divine faith it is necessary that the proposer himself also be believed by divine faith; since it is not necessary that the proposal itself, which only applies the divine testimonies, be the very testimony of God, but **it suffices that it be a human testimony, which renders the divine testimony itself evidently credible.**

You will say, it is impossible that anyone be obliged to believe by divine faith, as such, the things which this Pontiff defines as certain *de fide*, unless he be at the same time obliged to believe by divine faith that **this-in-number Pontiff** is the true Pontiff. [col. b] I answer, denying the antecedent: because, as we said before, for this it suffices that by evident signs of credibility they believe by human faith that this man has infallible authority from God of defining matters of faith; for by the very fact that it is morally certain to me that this man is the true Pontiff, I am bound to believe the things which he proposes and defines as to be believed *de fide*.

You will say, whenever some universal proposition is of faith as immediately revealed in itself by God, then the several particular propositions contained under that universal are likewise held to be of faith, for the reason that those particulars are contained, at least confusedly and implicitly, under that universal, in which they are thus also believed. But this universal proposition is of faith: every Roman Pontiff legitimately elected is the successor of Peter and the Vicar of Christ; therefore this too is of faith: Innocent XI is the successor of Peter and the Vicar of Christ. Which is confirmed, because as often as from one proposition of faith and another certain one a conclusion is drawn by an evident consequence, this too will be of faith.

I answer, denying the premise assumed: because, as we have already intimated above, **this rule fails in many cases**; for even if this universal be certain by divine faith — every host rightly consecrated con-

{p. 69} [col. a]

tains the Body of the Lord — yet it is not certain by faith that **this-in-number host** contains the Body of the Lord: just as also, even if it be certain by faith that everyone rightly baptized is in grace, yet it is not certain by divine faith that Peter who was baptized is in grace, etc. And this for the reason that, since conclusions of

this and the like kind are deduced from one premise of faith and a premise subsumed which is only morally certain, beneath which falsehood can lie: and on that account the aforesaid rule is only true when the particular is contained under the universal as an individual under its species, or as a species under its genus. And thus it follows well: it is of faith that every man sinned in Adam; therefore Peter and Paul sinned in Adam. And so, as regards the confirmation again, a conclusion drawn from a premise of faith and a subsumed premise **only morally certain**, however necessary the consequence, **cannot be of faith**, as is plain in the examples cited; **and therefore it will be only a theological conclusion.**

[End of Dubium VIII; DUBIUM IX. follows immediately in the same column.]

BLOCK H — Tractatus I, Quæstio II, Dubium IX

By what right the Bishop of Rome is the successor of Peter and the Vicar of Christ.

PDF 89–91 = printed 69–71. Running heads verified: p. 69 *De Ecclesiâ.*; p. 70 *Tractatus Primus*; p. 71 *De Ecclesiâ*. The dubium ends part-way down col. a of printed p. 71, immediately before QUÆSIO III.

{p. 69} [col. a]

DUBIUM IX.

By what right the Bishop of Rome is the successor of Peter and the Vicar of Christ.

I answer: even though it is certain by faith that St Peter was constituted [col. b] head of the Church and Vicar of Christ on earth, as also his successors, yet it is not certain by the same faith that the primacy of the Church is joined with the Roman episcopate: and on that account not only theologians but the heretics themselves have gone into divers opinions upon this point. And indeed Calvin, as also other heterodox men, judge this conjunction of the primacy of the universal Church with the Roman episcopate to have been made by the emperors for honour's sake — but falsely and wrongly.

Because emperors cannot confer a right in divine things which they themselves have not, for the reason that their power cannot exceed the power which the secular commonwealths have by whom they are elected. And on that account Catholics answer otherwise concerning this, however diverse in their opinions. And indeed some of them judge this conjunction to have been made by ecclesiastical right alone; whose foundation is that Christ, when he delivered that power to Peter, did not limit it to a certain place; and that St Peter could use this power with no particular see chosen for himself, as indeed he did in earlier times when he founded the churches of Alexandria and Antioch; and therefore that this con-

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junction was made by the will of the electors alone: besides, the Roman episcopate could cease by the destruction of the city, and yet there would still have to be some supreme head of the Church and Vicar of Christ.

Further, the more probable opinion of other theologians is that this conjunction of the primacy of the whole Catholic Church with the Roman episcopate is of divine right instituted by Christ; which, although it be not expressed in the Sacred Letters, yet seems to have been received by tradition from the Apostles themselves. Of which thing there is an evident argument, that not only before the Emperor Phocas — who by an imperial edict, against Cyriacus the Patriarch of Constantinople who usurped the title of ecumenical to himself, adjudged the controversy over the title of ecumenical to the Roman Bishop (in which there was no question of the primacy of the whole Church, which all had always adjudged to the Roman See, as Baronius testifies at the year 606) — nor only before the Emperor Constantine or the Council of Nicaea, but even from the very beginning of the nascent Church, the Bishop of Rome was always acknowledged by all as the successor of Peter. And that this is an apostolic tradition, Anacletus, Peter's disciple, not obscurely delivers in his first Epistle on the oppression of bishops, likewise Sixtus I in his [col. b] Epistle to the Gallican Churches, likewise Pope Marcellus in his Epistle to the Antiochenes, which is reported by Gratian, *cap. rogamus causa 24. quæst. 1.*, where he speaks thus: „ his see, namely „ Peter's, was first among you, „ which afterwards, at the Lord's bidding, „ was translated to Rome.

Which certainly can also be proved *a posteriori* from this, that notwithstanding the innumerable persecutions which the Roman Church has suffered, the Pontiffs nevertheless never transferred the see elsewhere; from which it is gathered that St Peter placed his see at Rome by a special mandate of Christ.

You will ask, **whether the Pope can be deposed from the papacy.**

I answer: yes; and first indeed by a spontaneous and free abdication, as Celestine V did; secondly by coercion and a just sentence; which is proved from *cap. si Papa distinct. 40.*, where it is said that the Pope is to be judged by no one **unless he be found deviating from the faith**, and therefore for the crime of heresy alone.

The reason is that, since the natural law grants to everyone the faculty of defending himself with the moderation of blameless protection against an unjust invader, this same right belongs also to the Church herself, in the case in which she should be so invaded by a heretical Pontiff; who consequently could be deposed by her even against his will, yet not

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for any other sins whatsoever, however scandalous, concerning which the common axiom holds good, *the first see is judged by no one.*

Further, the deposition of the Pontiff in the case of heresy, or rather the declaration by which he is declared deprived of the pontifical dignity, will belong to a general Council, or, if none be assembled, to the cardinals who have the power of electing the Pontiff; for the reason that both those powers, namely of electing and of deposing, are held by natural right to be connected.

[End of Dubium IX; QUÆSIO III. — De autoritate Concilii. follows immediately.]

BLOCK I — Tractatus I, Quæstio III, Dubium IV

Whether a general Council has infallible authority without the authority of the Pontiff being added.

PDF 98–100 = printed 78–80. (*The commission gave PDF 98–99 = printed 78–79; but the dubium runs on across the page-turn and ends two lines into col. b of printed p. 80, immediately before QUÆSTIO IV. Printed p. 80 was rendered from the source PDF at the same 400 dpi and is transcribed here — see sic-note I-1.*)
Running heads verified: p. 78 *Tractatus Primus*; p. 79 *De Autoritate Concilii*. [the Quæstio-III recto head]; p. 80 *Tractatus Primus*.

{p. 78} [col. a]

[...] (the preceding dubium ends “...as neither do those heretics who judge the contrary.”)

DUBIUM IV.

Whether a general Council has infallible authority without the authority of the Pontiff being added.

I say first that a general Council which has not been confirmed by the authority of the Roman Pontiff, even if it be legitimately convoked, is not infallible, and therefore can err.

{marg. *Of a general Council*} This is plain from the second general Council of Ephesus, which, legitimately as- [col. b] {marg. (rubric continued — its remaining lines stand in the inner margin at the head of this page) *the decrees are not infallible unless they have been confirmed by the Pontiff.*} sembled, with the apostolic legates also presiding in it, erred by subscribing to the error of Dioscorus, the apostolic legates resisting; as is plain from the Epistles 24, 25, 26 of St Leo the Pope given to Theodosius and Pulcheria, Augusti.

The same is plain from the Council of Basel, which, with the consent of Julian the legate of the Apostolic See, erred, defining that a general Council is above the Pontiff, in session 2 of that Council.

The reason is that the power of infallibly defining controversies of faith was not conferred by Christ upon the whole Church, but upon its head alone, and that for the profit of the Church, as is plain from the Scriptures cited above; and therefore, unless the sentence of the legitimate successor of Peter be added, the decrees of a general Council have not infallibility. Nor does it matter that Scripture calls the Church *the pillar and ground of the truth*, against which the gates of hell shall not prevail, because this is understood of the Church united to her head.

{marg. *Even though the legates of the Roman Pontiff presided in it.*} You will ask, whether a general Council celebrated by the legates of the Supreme Pontiff is infallible before the confirmation of the Pontiff himself.

I answer: no. Because God did not give infallibility in defining to the legates, but to Peter and his successors, to whom he said, Luke 22: *I have prayed for thee, Peter, that thy faith fail not.*

{p. 79} [col. a]

You will ask, whether a general Council legitimately convoked, the Pope being absent, is not of infallible authority.

I answer that some affirm this, for the reason that it represents the universal Church, which, gathered in the Holy Ghost, has the Holy Ghost infallibly assisting.

Notwithstanding which:

I answer: no. For **the whole Church is not understood without her head**, in which resides the authority of infallibly defining, since to him alone was granted the faculty of confirming his brethren in the faith and of feeding the sheep of Christ. And on that account a general Council cannot err only so far as it includes its head, or so far as it is premised as a previous condition to the definition of the Pontiff.

{marg. *A Council celebrated during a vacancy of the See is not infallible.*} You will ask, whether a general Council has not at least this infallibility when the pontifical See is vacant, or in the time of a schism, or of the deposition of the Pontiff himself.

I answer: no. Because neither from Scripture nor from tradition is it established that a general Council received such a power from God; nay rather, the opposite is established from the continual practice of the Church, which judges that no decrees sanctioned by a general Council have any force unless confirmed by a legitimately elected Pontiff.

You will ask, whether the decrees of a ge- [col. b] neral or of a provincial Council in a matter of faith are infallible, if these be confirmed by the Supreme Pontiff.

I answer: yes. Because the power conferred upon Peter and his successors was not limited to a general Council, but only, as we said above, to a human manner, namely, that such things be not defined by the Pontiff without the previous counsel of pious and learned men, gathered for this according to the gravity of the matter.

You will ask, whether a general Council in framing its decrees proceeds by way of inquiry, or rather by a judicial and definitive way.

I answer that the doctors of theology and of canon law summoned to a Council proceed by the way of inquiry alone, examining and searching out the truth; but that the bishops, and as many others as have a right of vote in the Council, proceed by the judicial and decisive way, both in controversies of faith and in laws concerning the universal Church.

{*marg. Bishops in Councils have a definitive vote.*} You will say, the bishops have not the ultimately decisive vote, but the Pontiff alone, for the reason that it belongs to him to pronounce the sentence, whom all the other voters are bound to obey, and he alone has a vote directed by the Holy Ghost, whereas the remaining voters can deviate from the truth, as indeed they sometimes do in fact deviate,

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namely when, before the confirmation of the Pontiff, there go before wholly opposed opinions of the voters.

I answer that it is true that the Pontiff in a general Council has the ultimately decisive vote, but from that it does not follow that the bishops have not a simply decisive vote, but rather that they have it subordinated to the vote of the Pontiff; for a subordination of that kind does not take away a simply decisive vote, as is plain in the praetor, who has a decisive voice, however much subordinated to the sentence of the prince.

Besides, the vote of the bishops is fallible, but that of the Pontiff is infallible.

{marg. *Whether the Pontiff in a Council must define according to the plurality of votes.*} You will say, if the bishops proceed in a Council by the definitive way, the Pontiff will be obliged in deciding controversies of faith to follow the greater part of the votes.

I answer, denying the consequence; but he will be bound to follow the greater evidence of credibility. For since a general Council, like any other human consultation which the Pontiff premises before a definition of faith, is prereduced for this, that it may be made evidently credible to the Pontiff which part of the controversy is true and revealed by God, the Pontiff will be obliged to follow that part of the votes which carries with it the greater evidence [col. b] of credibility that the matter to be defined is revealed by God.

[End of Dubium IV; QUÆSTIO IV. — De Scripturâ Canonicâ. follows immediately.]

BLOCK J — one paragraph: *I answer that every heretic is a schismatic...*

Quæstio on heresy and schism (Q. ..., Dubium III, immediately before DUBIUM IV *By what penalties heretics are punished*)

PDF 182 = printed 162. Running heads verified: p. 162 (verso) *Tractatus Primus*; the facing rectos (pp. 161, 163) read *De Hæresis*. **The commission described this as “Tractatus III”; the page in fact stands in Tractatus I (De Fide), in its treatment De Hæresi — see sic-note J-1.**

{p. 162} [col. a]

[...]

You will ask, whether every heretic is a schismatic, and conversely.

I answer that every heretic is a schismatic inasmuch as he withdraws from the universal Church, refusing to give assent to the articles of faith proposed by her; conversely, however, **not every schismatic must be a heretic; for it can happen that someone refuse obedience to the Supreme Pontiff, even though he believe him to be Christ's vicar**, and assent to all the articles of faith.

You will ask, what then schism is.

[...]

SIC-NOTES

Every reading below was checked against the 400 dpi page image at 2.4×–10× magnification with the crop tool. Where the machine OCR layer (Theologia.ocr.txt) differs, the **image** has been followed and the disagreement is recorded. “**Uncertain**” marks the readings a reader should re-check against the original.

Whole-book / material

- **W-1.** Every page of the digital surrogate carries the “Digitized by Google” watermark across the foot. Not transcribed.
- **W-2.** Signature marks at the foot of the page are not transcribed. Those observed on the transcribed leaves: **B3** (p. 13), **D** (p. 25), **H2** (p. 59), **H3** (p. 61), **I** (p. 65), **I 2** (p. 67), **I 3** (p. 69).
- **W-3.** Catchwords at the foot of each page are not transcribed. Those that bear on the reconstruction of a block are noted individually (A-13, D-13, F-7, G-6, H-5).
- **W-4.** Several leaves show a heavy black band across the foot of the scan — the edge of the tightly opened volume: pp. 12, 61, 62, 65, 71, 78, 162. No text is lost on any of them.
- **W-5.** Light show-through from the reverse is visible on pp. 60, 68 and 88; nowhere does it obscure a reading.
- **W-6.** The printer’s terminal-numeral practice is inconsistent and is preserved throughout: a descending **J** for a final **I** (DUBIUM **VJ**, p. 12; DUBIUM **VIJ**, p. 65), but a plain **I** elsewhere (DUBIUM VIII, p. 67; DUBIUM IX, p. 69), and twice a wrong-sort capital **L** (A-2, E-4).

- **W-7.** Marginal rubrics are set in a small italic. At that size a final **-æ** and a final **-a** are hard to separate when the sort is inked over; each such case was checked at 8×–10× and the outcome is recorded (D-1, E-3, G-1).

Block A (printed 12–16)

- **A-1.** p. 12: the dubium number is set **VJ.** (roman V + descending J), not VI. Retained.
- **A-2.** p. 16: the next heading is set **DUBIUM VIL** — the final sort is unmistakably a capital **L** (top-left serif, foot-bar to the right), a wrong sort for the second I of VII. Verified at 5×. Retained.
- **A-3.** p. 13 col. b: “si tamen consequentia sit solum **probalis**” — printer’s error for *probabilis*; the very next line sets *probabilis* correctly. The OCR agrees (“probalis”).
- **A-4.** p. 14 col. a: “confusè quoque revelatur **qnælibet**” — a **turned u** (qn- for qu-). Verified at 2.5×. Retained. The OCR silently normalises to “quælibet”.
- **A-5.** p. 14 col. a: “una propositio distincta ab **aitera**” — the second sort is a **dotted i**, not an l: *aitera* for *altera*. Verified at 2.5×; the OCR reads “aitera” too. Retained.
- **A-6.** p. 13 col. b: “assensus conclusionis **numquam** est certior” — the OCR reads *cumquam*; the image shows an unambiguous **n**, and the same fount’s *numquam* recurs on pp. 22 and 24. Image reading adopted.
- **A-7.** p. 13 col. b: **adeoque** is set here without the grave the book elsewhere gives (*adeòque*, p. 62). The OCR reads “adeeque”. Image reading adopted; no accent transcribed.
- **A-8.** p. 15 col. b: “prout patet in **hac,;** Christus est risibilis” — a comma immediately followed by a colon. Verified at 2.2×. Retained.
- **A-9.** p. 15 col. b: between “non” and “tamen ita definit” stands a small raised mark; at 2.2× it is an ink speck or broken sort, **not** punctuation. Transcribed as a plain space.
- **A-10.** p. 15 running head reads “**De fide Teologica & ejus objecto.**” — *Teologica* without the h, where pp. 13, 21, 23, 25 read *Theologica*. Retained.
- **A-11.** p. 16 col. a: a small mark stands between “talis” and “foret consecutivè”; taken as an ink speck and not transcribed.
- **A-12.** p. 12 heading: the heading as printed inserts an **&** (“mediata; **&** consequenter”) that the commission’s quotation of the title omits. The printed form is given.

- **A-13.** Image supplied: PDF 32 (printed 12) was **not** among the images provided; it was rendered from the source PDF at the same 400 dpi so that the block could begin at the dubium heading as instructed.
- **A-14.** Silent expansions in this block: *revelatū* → *revelatum* (marginal rubric, p. 13); *dā net* → *damnet* (p. 15).

Block B (printed 21–26)

- **B-1. Extent corrected.** The commission gave PDF 41–44 = printed 21–24. The dubium in fact runs on and ends at the head of col. b of printed **p. 26** (“... & tandem à fide totaliter deficiant.”), immediately before *DUBIUM. X.* Printed pp. 25–26 (PDF 45–46) were rendered from the source PDF at 400 dpi and are transcribed, so that the block runs “heading to the end” as instructed. Running heads on the added leaves verified: p. 25 *De fide Theologica & ejus objecto.*, p. 26 *Tractatus Primus.*
- **B-2.** p. 21 col. a: “quia habitus non fertur **iu** aliquod objectum” — a **turned n** (*iu* for *in*). Verified at 2.5×. Retained; the OCR normalises to “in”.
- **B-3.** p. 21 col. a: “ratio **est**,” — the *st* ligature is heavily inked and can be misread as “eit” (as it nearly is in the OCR). The ligature is certain at 2.5×.
- **B-4.** p. 24 col. a: “dans **elēmosinam** alicui pauperi” — the third letter carries a **diaeresis**; this is the printer’s form for *eleemosynam*. Retained exactly.
- **B-5.** p. 24 col. a: “contingere potest **qnod** Parentes” — a **turned u** (*qnod* for *quod*). Verified at 2.5×. Retained.
- **B-6.** pp. 24–25: the rubric *Homines induci ad credendum non solum motivis / externis, sed etiam internis, & quæ sint.* is split across the page-turn. The OCR folds the fragment “externis,” into the body text at the head of p. 25.
- **B-7.** p. 26 col. a: “tanquam motivo externo, **juncto** lumine interno” — the final letter of *juncto* is a damaged sort; **o** is adopted on grammar, but **æ** cannot be excluded, and the OCR reads “junctur”. **Uncertain.**
- **B-8.** p. 26 col. a: *lumine* and *judicat fidem* are set with broken m and d sorts — legible but faint (the OCR reads “lu nine”, “ju licat fi lem”).
- **B-9.** Silent expansions in this block: *falsū* → *falsum*, *actū* → *actum*, *credendū* → *credendum* (marginal rubrics); *dū* → *dum* and *proponñ-tur* → *proponuntur* (marginal rubric, p. 25); *defectū* → *defectum* (p. 26).
- **B-10.** Quotation marking: the long quotations from Richard of St Victor (p. 24), Aquinas (p. 25) and Jerome (p. 25) are marked in the original by **double commas set at the left of every line** of the quotation. These are

reproduced as , , at the points where they stand; the OCR renders them as ordinary commas, so quoted matter cannot be recovered from it.

Block D (printed 59–63)

- **D-1.** p. 59 marginal: “...tamquam **Ecclesiæ** caput.” The final ligature is inked over; at 8× the two counters of the **æ** are visible. Adopted.
- **D-2.** pp. 59–60: the rubric *Quorundam sententia asserentium Roman. Pontificem sine Concilio definientem posse errare.* is split across the page-turn — “Quorun-” in the outer margin of p. 59, “...dam sententia...” onward in the outer margin of p. 60. Note that the body text sets *quorundam* in full at the foot of p. 59; the rubric’s split is independent of it.
- **D-3.** p. 60: three lines — *res fidei errare non posse.* — stand in the **inner** margin at the **head** of the page. They are the overflow of the rubric begun at the foot of the **outer** margin of the same page (“Scientia aliorum asserentium Pontificem se solo definientem”), for which the outer margin had no room. The identical compositor’s expedient recurs on p. 78 (I-2), which confirms the reconstruction. The OCR drops this fragment entirely.
- **D-4.** p. 60 marginal: the rubric begins “**Scientia**” — S-c-i-e-n-t-i-a, checked at 5× — a printer’s error for *Sententia* (cf. *Tertia sententia asserentium...*, p. 61). Retained.
- **D-5.** p. 60 col. b: “usque **adconsumma-/tionem** sæculi” is set solid across the line-break; word-divided here as *ad consummationem*.
- **D-6.** p. 60 col. b, Luc. 22:32: the OCR reads “& **in** aliquando conversus”; the image shows **& tu aliquando conversus**. Verified at 2.2×. Image reading adopted.
- **D-7.** p. 62 col. a: “eodem sæculo **ę** Stephano Papâ” — the sort before *Stephano* is an **ę** (e-caudata), where the sense requires *à*. Retained exactly, per the convention on **ę**. **Uncertain** whether this is a wrong sort or a badly damaged *à*.
- **D-8.** p. 62 col. a: “negantium **pænitentiam** post Baptismum” is set with a broken *n* and a stray point (*pæniter.tiam* in the OCR); the reading is secure.
- **D-9.** p. 63 col. a: after “viroborum” **one or two words have been obliterated in manuscript ink** by an early reader, who has written above the deletion, in a cursive hand, what appears to read *& Doctorum*. The printed reading beneath is **not recoverable** from this copy; the OCR produces the nonsense “pro et totum”. Marked in the transcript as {†word obliterated in manuscript ink}. This is the only substantive reader’s mark on the transcribed leaves.

- **D-10.** p. 63 col. a: “antequam Pontifex **definiat** rem aliquam” — an ink blot covers the *-ni-*; the reading is secure from the surrounding letters and the sense. The OCR reads “defumiat”.
- **D-11.** p. 59 col. b: **quándo** carries a printed acute. Retained.
- **D-12.** Silent expansions in this block: *explicãdo* → explicando (p. 59); *asserentiũ* → asserentium, *Pontificẽ* → Pontificem, *Põtificem* → Pontificem, *Cõsilium* → Consilium, *sentẽ-tia* → sententia (marginal rubrics, pp. 60–61).
- **D-13.** The catchword at the foot of p. 63 is *Petes* — the first word of Block E.

Block E (printed 63 foot – 65 head)

- **E-1.** p. 64 col. a: “**Qantum** ad primi generis decretum” — printer’s error for *Quantum*; the parallel *Quantũm ad decreta secundi generis* is set correctly in col. b. Verified at 2.5×. Retained.
- **E-2.** p. 64 col. b: “**semperinnititur**” is set solid; word-divided here as *semper innititur*. Verified at 3×. The OCR reads “semperimititur”.
- **E-3.** p. 64 marginal (outer, right): the last word is inked over; the surviving counters at 8× are consistent with **Ecclesiæ**, which is adopted. **Slightly uncertain** (Ecclesia cannot be wholly excluded).
- **E-4.** p. 65 col. a: “& Julio **IL.** laudabiliter esse approbatum” — the second numeral is a capital **L** (top-left serif only, foot-bar to the right), where *II.* is required. Unambiguous at 8×. Retained; the OCR normalises to “II.”.
- **E-5.** p. 65 col. a: “errare in **duobus** fidei quæstionibus” — an ink blot sits on the *o*; the reading is secure at 2.5×. (The OCR of p. 85 also reads “duobus”.)
- **E-6.** p. 64 col. a: the citation formula *de sent: excommunicat.* (= de sententia excommunicationis) is left unexpanded, being a legal short-title.
- **E-7.** p. 64 col. b: the quotation from Innocent III is set without quotation marks in this book, unlike the double-comma quotations of Block B; reproduced as printed.

Block F (printed 65–66)

- **F-1. Extent corrected.** The commission gave PDF 85–87 = printed 65–67. The dubium in fact ends at the foot of col. b of printed **p. 66** (catchword *Dub. 8.*), and DUBIUM VIII opens col. a of printed p. 67 — which is Block G. Block F is therefore printed 65–66.
- **F-2.** p. 65: the dubium number is set **VIJ.** (see W-6).

- **F-3.** p. 66 col. a: “celebrandum & colendum ab **omnibes** fidelibus” — printer’s error for *omnibus*. Verified at 3×. Retained; the OCR silently normalises.
- **F-4.** pp. 65–66: the rubric *Non potest Pontifex errare in Canonizatione SS.* is split across the page-turn (“...in Canoni-” in the outer margin of p. 65, “zatione SS.” in the outer margin of p. 66).
- **F-5.** p. 66 marginal: “Non est de fide **eam quis** solum Beatificatum esse in cælis.” — *eam quis* is what the italic shows at 6×, but it does not construe; the sense wants *eum qui* or *eum quem*. **Uncertain reading; retained as printed.**
- **F-6.** p. 66 col. a: “sed Pontifex **ad** Canonizationem procedens” — the *d* is very faint (the OCR reads “a!”); the reading is secure from the sense and from the visible ascender.
- **F-7.** p. 66 col. b: the closing words are followed by the catchword *Dub. 8.* (not transcribed) — the mechanical proof that the dubium ends here.

Block G (printed 67–69) — the central passage

- **G-1.** p. 67, left margin: the rubric reads exactly “**Non est fidei divinæ modernum Pontificem esse verum Pontificem.**” The *æ* of *divinæ* was checked at 10×: the ligature’s two counters are unmistakable, so *divinæ*, not *divina*. Line-breaks in the printed rubric: *Non est / fidei di- / vinæ mo / dernum / Pontifi- / cem esse / verum / Pontifi- / cem.*
- **G-2.** p. 67 col. a: “ea propter in hoc **sillogismo**” — printed *sillogismo*, not *syllogismo*. Verified at 2.5×. Retained.
- **G-3.** p. 67 col. b: “ergo neque fide **divinâ** constabit” — the accent is a printed **grave**, where the book’s usual ablative mark is a circumflex (*divinâ* stands two lines above and two below). Verified at 3.5×. Retained as printed; a damaged circumflex cannot be wholly excluded. **Slightly uncertain.**
- **G-4.** p. 67: the heading is set “**DUBIUM VIII**” with **no** following point, unlike DUBIUM V. / VIJ. / IX. Retained.
- **G-5.** p. 68 col. b: “credant fide humana **hinc** hominem habere infallibilem auctoritatem” — *hinc* stands where the sense wants *hunc*; the *i* is dotted and certain at 3×. **Printer’s error retained;** the OCR reads “hinc” as well.
- **G-6.** Neither p. 68 nor the Dubium VIII portion of p. 69 carries any marginal rubric; the single rubric of the block is the one at G-1. The catchword at the foot of p. 68 is *net*, joined here to *Corpus Domini* at the head of p. 69.

- **G-7.** p. 67 col. b: “in **remonstrantia** exposita” — thus printed (for the monstrance); retained.

Block H (printed 69–71)

- **H-1.** p. 71 col. a: “quantumvis **scandolôsa**” — *scandolosa* for *scandalosa*, and the second **o** carries what appears to be an acute accent. Verified at 2.4×. Retained as *scandolôsa*; **the accent is uncertain** (it may be an ink speck).
- **H-2.** p. 71 col. a: the quæstio heading is set “**QUÆSIO III.**” — printer’s error for *QUÆSTIO III.*; contrast “*QUÆSTIO IV.*” correctly set on printed p. 80. Verified at 2.4×. Retained.
- **H-3.** p. 70 col. b: the quotation from Marcellus is marked by double commas at the left of each line; reproduced as , , .
- **H-4.** p. 70 col. a: “imperiali edicto **cōtra** Ciriacum” — tilde silently expanded to *contra*.
- **H-5.** pp. 69–70: the catchword *con-* at the foot of p. 69 and *junctionem* at the head of p. 70 are joined here as *conjunctionem*; the catchword itself is not transcribed.
- **H-6.** p. 70 col. a: “**Ciriacum** Patriarcham Constantinopolitanum” — thus printed (for Cyriacus); retained.

Block I (printed 78–80)

- **I-1. Extent corrected.** The commission gave PDF 98–99 = printed 78–79. The dubium in fact ends **two lines into col. b of printed p. 80**, immediately before *QUÆSTIO IV. — De Scripturâ Canonicâ*. Printed p. 80 (PDF 100) was rendered from the source PDF at 400 dpi and is transcribed, so that the block runs to the end as instructed. Running head of the added leaf verified: p. 80 *Tractatus Primus*.
- **I-2.** p. 78: the rubric *Concilij generalis decreta non sunt infallibilia nisi à Pontifice confirmata sint.* is split between the **outer (left)** margin at the **foot** of the page (“Concilij generalis”) and the **inner (right)** margin at the **head** of the page (the remaining seven lines). This is the same expedient as at p. 60 (D-3).
- **I-3.** p. 78 marginal: *Concilij* is set with a **terminal j** (the italic marginal fount’s form for final -ii), whereas the roman body type sets *Concilii*. Both retained as printed, per the u/v–i/j convention.
- **I-4.** p. 78 col. b: “sess. 2. **il lius** Concilii” — *illius* is broken by loose quadding. Retained with the space. Verified at 3×.

- **I-5.** p. 79 col. a: “residet autoritas **infallibiter** definiendi” — printer’s error for *infallibiliter* (two sorts wanting). Verified at 3×. Retained; the OCR normalises to “infalliliter”.
- **I-6.** p. 79 col. a: “neque ex **Scriptuta** neque ex traditione constat” — printer’s error for *Scriptura*. Verified at 3×. Retained; the OCR normalises.
- **I-7.** p. 79 col. b: “non fuit limitata ad Concilium **gerale**” (line-broken *ge-/rale*) — printer’s error for *generale*. Verified at 3×. Retained; the OCR normalises.
- **I-8.** p. 79 col. b: “ut **illa non** definiantur à Pontifice” is set with the word-space displaced (“illan on”); the space is normalised here and the displacement recorded only in this note.
- **I-9.** p. 80 col. a: “ut patet in **prėtore**” — printed with an **ę** (e-caudata), not æ. Verified at 3×. Retained exactly, per the convention on ę. This and D-7 are the only ę forms in the transcribed pages.
- **I-10.** p. 79 running head reads “**De Autoritate Concilii.**” — the only recto head of this form in the transcribed pages, and the head that identifies Quæstio III.
- **I-11.** p. 78 col. b: “sess. 2.” — the numeral 2 in this fount has an unusually curled foot and can be misread as an *e*; compare the securely set “24. 25. 26.” three lines above.

Block J (printed 162)

- **J-1. Tractate mis-assigned in the commission.** The passage was described as “Tractatus III”. It is not: printed p. 162 stands in **Tractatus I** (*De Fide*), in its treatment *De Hæresi*. The verso head reads *Tractatus Primus* and the facing rectos (pp. 161, 163) read *De Hæresis*. In this edition Tractatus II (*De Spe*) begins around PDF 194 and Tractatus III (*De Charitate*) around PDF 238 — both far beyond p. 162.
- **J-2.** p. 162: no marginal rubric stands beside the transcribed paragraph. The dubium heading later on the same page is “DUBIUM IV. / *Quibus pænis afficiantur hæretici.*”
- **J-3.** p. 162: the recto running head of this section is set *De Hæresis*. (thus, with the genitive-looking form) — noted as the printer sets it.
- **J-4.** p. 162 col. a: the paragraph is set without abbreviation or damage; the reading is secure throughout at 2×.

Silent expansions — the types used

Only three contraction types occur on the transcribed leaves, and all three were expanded silently in the text above:

1. **Tilde or macron over a vowel standing for a following *m*:** *revelatū* → *revelatum*; *actū* → *actum*; *falsū* → *falsum*; *credendū* → *credendum*; *Conciliū* → *Concilium*; *celebratū* → *celebratum*; *asserentiū* → *asserentium*; *Pontificē* → *Pontificem*; *secundū* → *secundum*; *dā(net)* → *dam(net)*.
2. **Tilde or macron over a vowel standing for a following *n*:** *nō* → *non*; *dū* → *dum*; *cōtra* → *contra*; *Cōsilium* → *Consilium*; *Pōtificem* → *Pontificem*; *explicādo* → *explicando*; *sentē(tia)* → *senten(tia)*.
3. **Tilde over a consonant standing for *-un-*:** *proponñtur* → *proponuntur*.

No other contraction types occur — no *q̄*, no *p̄*, no *ϕ*, no nomina sacra. The ordinary printed abbreviations of the citation and disputation formulae are **left unexpanded as printed**: *Resp.*, *neg.*, *conseq.*, *cons.*, *anteced.*, *antec.*, *assump.*, *subsump.*, *affirm.*, *affir.*, *negan.*, *quæst.*, *art.*, *lib.*, *cap.*, *c.*, *distinct.*, *sess.*, *v. g.*, *&c.*, *S.*, *SS.*, *Augg.*, *Tho.*, *Thom.*, *Joan.*, *Acto.*, *ulti.*, *quodlib.*, *de sent: excommunicat.*

Systematic image / OCR disagreements

The machine layer at `/mnt/d/0_Projects/upa-more/treatises/READY13/Theologia.ocr.txt` was used only as a cross-check; the images are authoritative throughout. Its recurrent faults, observed across all nine blocks:

- **(a) Accents dropped.** It records none of the printed accents (*verò*, *quòd*, *humanâ*, *divinâ*, *sæpè*, *adeòque*, *quándo*, *à*, *è*). Every accent in this transcript comes from the image.
- **(b) Printer's errors silently normalised.** It “corrects” *qnælibet*, *aitera*, *iu*, *qnod*, *omnibes*, *Qantum*, *Scriptuta*, *gerale*, *infallibiter*, *Scientia*, *IL.*, *QUÆSIO* — precisely the readings this transcript is meant to preserve.
- **(c) Marginalia garbled or lost.** It runs the rubrics together with body text, drops the inner-margin fragment on p. 60 entirely, and folds the p. 25 rubric fragment “externis,” into the first line of the column.
- **(d) Long-s / f confusion**, e.g. *sallax* for *fallax*, *sallitur* for *fallitur*, *side* for *fide*, *ficut* for *sicut*.
- **(e) Quotation marks lost.** The double-comma line-marking of quotations becomes ordinary commas, so quoted matter is not recoverable from the OCR.

- **(f) Individual disagreements** resolved in favour of the image and recorded above: A-6 (*numquam* / “cumquam”), A-7 (*adeoque* / “adeeque”), B-3 (*est* / “eit”), B-7 (*juncto* / “junctur”), D-6 (& *tu* / “& in”), D-9 (obliterated word / “pro et totum”), D-10 (*definiat* / “defumiat”), E-2 (*semper innititur* / “semperimititur”), F-6 (*ad* / “a!”).

Readings a reader should re-check against the original

B-7 *juncto* (p. 26) · **D-7** *ę* for *à* (p. 62) · **D-9** the obliterated word (p. 63) · **E-3** *Ecclesiæ* in the marginal (p. 64) · **F-5** *eam quis* (p. 66) · **G-3** *divinà* (p. 67) · **H-1** the accent on *scandolósa* (p. 71).